

hearing date. See CCP § 1277(a)(4).

This matter first came on for hearing on July 20, 2026. The matter was continued to today's date, to permit the father to timely serve the mother with at least 30 days' notice of the hearing. No timely proof of service has been filed. An appearance is necessary on today's calendar to discuss status of service. Failure to appear will result in denial of the petition without prejudice to refile.

WRIGHT VS. TARGET CORPORATION

CASE NUMBER: 26CV-0210029

Tentative Ruling on Motion to Strike: Defendant Target Corporation moves for an Order striking certain portions of the First Amended Complaint on the grounds that punitive and exemplary damages are not support by facts sufficient to satisfy Civil Code section 3294 and are therefore irrelevant, improper, and not drawn in conformity with California law. Plaintiff opposes the Motion.

Meet and Confer: Before filing a motion to strike, a party is required to meet and confer in person or on the telephone. CCP § 435.5(a). A motion to strike shall be supported by a declaration stating either that the parties met and conferred or that they were unable to meet and confer. CCP § 435.5(a)(3). The Declaration of Michael Tafarella demonstrates compliance with the meet and confer requirement.

Merits: A motion to strike reaches only "irrelevant, false, or improper matter inserted in any pleading" or matter "not drawn or filed in conformity with the laws of this state." (Code Civ. Proc., § 436.) As with a demurrer, the court's review is limited to the face of the challenged pleading and matters subject to judicial notice; the allegations of the complaint are accepted as true, and extrinsic evidence offered by either side to create or resolve factual disputes is not properly considered on this motion. Code Civ. Proc., § 437(a).

Defendant moves to strike all references in the FAC to punitive and exemplary damages, arguing that Plaintiff has not adequately alleged facts sufficient to satisfy Civil Code section 3294. That section provides that a plaintiff may recover punitive and exemplary damages where clear and convincing evidence establishes that defendant has been guilty of oppression, fraud or malice.

“In order to state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code section 3294. These statutory elements include allegations that the defendant has been guilty of oppression, fraud or malice. Malice is defined in the statute as conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. Oppression means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. Fraud is an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” *Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63 (internal citations omitted).

Simply characterizing a defendant's conduct as "intentional, willful, malicious, fraudulent, [or] false" is patently insufficient to support a claim. *Smith v. Superior Court* (1992) 10 Cal. App. 4th 1033. Allegations that a defendant's conduct was wrongful, willful, wanton, reckless, or unlawful

charge negligence or nondeliberate injury, which do not rise to the level of malice. *Ibid.*

Plaintiff's factual allegations in the FAC do not support a prayer for punitive damages. Plaintiff generally alleges that she slipped and fell on a loose floor mat in Target on a rainy day. She further alleges that Defendant's response to the incident was inadequate. There are no allegations of conduct *intended* by Defendant to cause injury; of despicable conduct subjecting Plaintiff to cruel and unjust hardship in conscious disregard of her rights; or of intentional misrepresentation or concealment with intent to cause injury. Therefore, the Motion to Strike is **GRANTED**. The proposed order will be executed.

9:00 a.m. Review Hearings

CAICEDO VS. SUNBABE, LTD

CASE NUMBER: 25CV-0208229

This matter is on calendar for review regarding status of responsive pleadings. A motion to quash service of summons was filed by Defendant and set for hearing today. The motion was granted for failure to validly serve Defendant with the Summons and Complaint. The matter continued to **Monday, December 7, 2026, at 9:00 a.m. in Department 64** for status of service. No appearance is necessary on today's calendar.

EL RIO ESTATES LLC VS. CARUSO

CASE NUMBER: 26CVG-00667

This matter is on calendar for status of accounting. The Inventory and Accounting have been filed pursuant to California Civil Code section 798.61. The clerk is directed to close the file. No appearance is necessary on today's calendar.

LAKEVIEW LOAN SERVICING, LLC VS. GONZALEZ, ET AL.

CASE NUMBER: 25CV-0207895

This matter is on calendar for review regarding status of service. The Court intends to dismiss the action pursuant to an OSC re Dismissal on this morning's 8:30 a.m. calendar. Therefore, the review hearing is dropped from calendar, and no appearances are necessary.

LEWISTON COMMUNITY SERVICES DISTRICT VS. SUDA PROPERTIES, LLC, ET AL.

CASE NUMBER: 25CV-0208034

This matter is on calendar for trial setting. The Court designates this matter as a plan II case and intends to set the matter for trial no later than December 8, 2026. Neither side has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to appear to provide the Court with available trial dates.

MCCAIN VS. EST OF RICHARD CARL RIPLEY, ET AL.

CASE NUMBER: 25CV-0207239

This matter is on calendar for review regarding status of service, improperly named defendants, and failure to record a notice of pendency of action. The proofs of service on file indicate that